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Court

SINDH HIGH COURT

Date

2000-05-22

Appeal No.

CONSTITUTIONAL PETITION NO. 161 AND MISCELLANEOUS NOS. 876, 235, 253 AND 254 OF 1999

Judge

ANWAR ZAHEER JANIALI, J

Parties

AYESHA TAHIR SHAFIQ PETITIONER VERSUS SAAD AMANIJLLAH KHAN AND 2 OTHERS (RESPONDENTS)

Lawyers

KHALID LATIF AND MUBARAK HUSSAIN SIDDIQUI FOR PETITIONER. RAJA QURESHI AND MASOODA SIRAJ FOR RESPONDENT NO.1.

Statutes

CONSTITUTION OF PAKISTAN 1973 - ARTICLE 199 GUARDIANS AND WARDS ACT (VIII OF 1890) - S. 25 GUARDIANS AND WARDS ACT (VIII OF 1890) - SS. 13 AND 25 GUARDIANS AND WARDS ACT (VIII OF 1890) - S, 25 GUARDIANS AND WARDS ACT (VIII OF 1890) - SS. 13 AND 25 GUARDIANS AND WARDS ACT (VIII OF 1890) - S.25 GUARDIANS ARID WARDS ACT (VIII OF 1890) - SS. 13 AND 25 CONSTITUTION OF PAKISTAN (1973) - ARTICLE 199

Judgment

By this Constitutional petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner has assailed orders dated 3-4-1999 and 2-11-1998 passed by the respondents Nos.2 and 3 respectively.

2. The relevant facts, forming background of this litigation are that the petitioner and respondent No. 1 were married at Karachi on 10-11- 1989. From this wedlock, the petitioner gave birth to two children Sara (daughter). on 19-4-1991 and Amin (son) on 7-11-1993. Later on, relations between the petitioner and respondent No.1 became strained which resulted in filing of Guardianship Application No.371 of 1995 for the custody of two minor children and Family Suit No.368 of 1995, for restitution of conjugal rights, by respondent No.1 and a suit for dissolution of marriage being Family Suit No.483 of 1995 by the petitioner. During the proceedings of these cases after, passing of various orders before the Guardian Court/Family Court, Appellate Court and Revisional Court, this litigation culminated in an agreement dated 18-6- 1996 between the petitioner and .the respondent No.1 and consequent order of the same date passed by the Hon'ble Supreme Court of Pakistan in C.P.L.A. No.225 of 1996.

3. The terms of the aforesaid agreement. relating to the meeting/visitation of the children were adhered by the parties for about 8 months.

However, thereafter, on 21-3-1997 the petitioner addressed an application to the Hon'ble Chief Justice of Pakistan wherein she narrated the incidents of sexual abuse of the minors at the hands of respondent No.1, during the period of their visitation/meeting in terms of the agreement and the order dated 18-6-1996.

4. On 31-3-1997 the respondent No.1 complaining about the violation of the terms of agreement dated 18-6-1996 by the petitioner, also filed a Contempt Application No.06 of 1997 before the Hon'ble Supreme Court of Pakistan, to which objections were filed by the petitioner on 3- 5-1997. This contempt application after some proceedings, was eventually dismissed by the Hon'ble Supreme Court of Pakistan on 20-10- 1997, with the observations that no ground for variation in the consent arrangement provided in the agreement and order dated 18-6-1996, was made out.

5. In the meantime on 2-4-1997, the petitioner also filed an application under the Guardians and Wards Act, 1890 before the District Judge (South), Karachi, being Guardianship Application No. 146 of 1997, which was ultimately transferred to the Court of Senior Civil Judge and Family Court (South), Karachi. In this Guardianship Application, the petitioner narrated almost the similar facts as disclosed by , her in her application dated 21-3-1997 addressed to the Hon'ble Chief Justice of Pakistan agitating that due to his conduct the respondent No.1 has rendered himself disentitled from the right of his meeting/visitation with the minors in the terms of agreement dated 18-6-1996.

6. During the pendency of the Guardianship Application filed by the petitioner, on 19-5-1998 she also moved C.M.A. No.500 of 1998 before the Hon'ble Supreme Court of Pakistan praying therein for variation in the terms of the agreement dated 18-6-1996 so that the respondent No.1 may not Be allowed to take the children at his house on Eid days or during visitations but he may be allowed to meet the children at some other place where the acts complained by the minors could not be repeated. Such application of the petitioner was however, dismissed by the Hon'ble Supreme Court of Pakistan on 5-6-1998 with, the observations that as such dispute is already in issue before the Family Court therefore it will be proper for the petitioner to present her application before the Family Court who will be free to pass such order as deemed appropriate after hearing both the parties and providing them reasonable opportunity which may be

warranted by law. On 16-7-1998 the petitioner moved an application under sections 7 and 48 of the Guardians and Wards Act, 1890 before the Family Court where her Guardianship Application No.146 of 1997 was already pending. In her application the petitioner prayed for suspension of the effect of agreement/order dated 18-6-1996.

On 1-9-1998, the respondent No.1 also filed a Guardianship Application No.486 of 1998 before the District Judge (South) Karachi, which was transferred to the Court of 1st Senior Civil Judge (South), Karachi. When, both these Guardianship Applications were pending in Court, on 21-9-1998 the respondent No.1. moved a transfer application before, the District Judge (South); Karachi for seeking transfer of both the Guardianship Applications before the same Court. Such application was allowed on 24-9-1998 and the Guardianship Application No. 146 of 1997 filed by the petitioner was transferred to the Court of 1st Senior Civil Judge and Family Court (South), Karachi where the other Guardianship Application No.486 of 1998 was already pending. Later on, on a reference made by the Court of 1st Senior Civil Judge and Family Court (South), Karachi, District Judge (South), Karachi transferred, both the Guardianship Applications to the Court of IV-Senior Civil Judge and Family Court (South), Karachi. On 17-10-1998 respondent No. 1 made an application under section, 13 of the Guardians and Wards Act 1890 before the Family Court and IV-Senior Civil Judge (South), Karachi praying therein for recording of evidence of the parties in both the connected Guardianship Applications before passing of any interim orders for deciding question of modifying the terms of the agreement dated 18-6-1996. However, the counsel for the petitioner prayed before the IV-Senior Civil Judge and Family Court (South), Karachi for passing of some interim orders on his application dated 16-7-1998. The respondent No.3 heard, the arguments of the learned counsel on this application and by his order dated 2-11-1998 not only dismissed the application for interim relief moved by the petitioner but also her Guardianship Application No. 146 of 1997.

8-; Against the aforesaid order dated 2-11-1998 passed by respondent No:3, the petitioner preferred Family Appeal No.45 of 1998 before the District Court (South), Karachi, which was transferred to the Court of Additional District Judge (South), Karachi, who ultimately dismissed the same on 3-4-1999.

9. In his reply to the allegations made in the petition, the respondent No.1 did not deny the history of previous litigation between the parties as narrated in the petition, however, he vehemently denied the allegations leveled against him by the petitioner with regard to his alleged conduct with the two minors at the time of their meetings with him and with regard to the, alleged, complaints of the children, and termed such allegations as false, baseless, wild, outrageous and shameful. Referring to the orders dated 22-5-1997, 20-10-1997 and 5-6-1998 passed by the Hon'ble Supreme Court, of Pakistan, respondent No.1 submitted that on three occasions, similar relief claimed by the petitioner for change/modification in the terms of agreement dated 18-6-1996 was declined by the Hon'ble Supreme Court. As regards to the contents of the application under sections 7 and 48 of the Guardians and Wards Act dated 16-7-1998 and the Guardianship Application No. 146 of 1997, respondent No.1 submitted that the reliefs claimed therein were misconceived and thus the lower Court was fully justified in passing the impugned order dated 2-11-1998. In reply to several documents placed on record by the petitioner along with her petition and with specific reference to the medical reports dated 9-2-1998 and 14-5-1998, respondent No.1 not only strongly denied the same but also placed on record other medical reports dated 4-6-1998 and 31-7-1998 to show that his daughter Sara was examined by the doctor and was found perfectly normal. Referring to various orders passed in the earlier proceedings before different forums respondent No.1 submitted that the wild allegations leveled against him by the petitioner were already disbelieved by the Courts as discussed in various orders and thus the same were rightly rejected by respondents Nos.2 and 3.

10. The petitioner in her affidavit-in-rejoinder to the reply of the petition filed by respondent No.1 reiterated her allegations made in the petition and denied other allegations made by the respondent No.1 in his. reply to the petition.

11. I have heard the learned counsel for the parties.

12. Mr. Khalid Latif, learned counsel for the petitioner, after narrating in detail the history of previous litigation between. the petitioner and respondent No. 1 as summarized above, raised following contentions:-

(A) The two orders impugned in this petition are illegal as the. averments made in the Guardianship Application No. 146 of 1997 could not have been rejected summarily by the Family Court without affording a proper opportunity to the petitioner to prove such . assertions by adducing her evidence in that respect. The petitioner was denied such opportunity which, resulted in miscarriage of justice.

(B) Welfare of the minors is the paramount consideration for the Family Court/Guardian Court for deciding the question of their custody or any other matter relating thereto and even a consent order or a compromise between the parties contrary to the interest and welfare of the minors is liable, to be set aside. The Guardian Court while v passing the impugned order so also the Appellate Court while maintaining that order did not examine this crucial aspect of the case at all and thus the issue of welfare of the minors with reference to the allegations made, by the petitioner remained undecided.

(C) The Hon'ble Supreme Court of-Pakistan in its order dated 5-6-1998 had specifically observed that the grievance agitated in C.M.A.No.500 of 1997 could be decided by the Family Court but such observations were overlooked by the respondents Nos.2 and 3.

(D) Filing of Guardianship Application No.486 of 1998 by the respondent No.1 by itself was a proof of the fact that even the respondent No. 1 was not disputing this legal position that the Guardian Court/Family Court had the jurisdiction to take-into consideration the subsequent events and conduct of the parties and; to set aside, modify/change the earlier arrangement as per agreement dated 18-6-1998, keeping in mind the question of welfare of minors as prime consideration for this purpose.

13. On the strength of above submissions the learned counsel while concluding his arguments contended that the two orders challenged in this petition may be set aside and the respondent No.3 may be directed to decide Guardianship Application No. 146 of 1997 filed by the petitioner afresh after affording proper opportunity to both the parties to lead their evidence in respect, of their respective contentions. To fortify his contentions learned counsel placed reliance on the following cases:

(1) PLD 1967 SC 402, (2) PLD 1970 Karachi 619, (3) 1983 SCMR 606, (4) 1985 SCMR 2066, (5) PLD 1986 SC 14, (6) 1989 MLD 3427, (7) 1993 CLC 736, (8) PLD 1996 Karachi 174.

14. Mr. Raja Qureshi the learned counsel for respondent No.1 in his arguments/written arguments controverting the submissions of the-learned counsel for the petitioner urged that the petition is based on false, baseless, wild, outrageous and shameful allegations against respondent No.1, the petitioner has not approached this Court with clean hands and thus the petition is not maintainable in law. Learned counsel further argued that the grounds urged by the petitioner in her Guardianship Application and the negations' leveled therein against respondent No.1 were already considered and rejected by the Hon'ble Supreme Court of Pakistan on three

occasions when orders dated 22-5-1997, 20-10-1997 and 5-6-1998 were passed in the matter and in such circumstances the Guardian Court as well as the Appellate Court were justified in not allowing the petitioner to reargue the same allegations and grounds before them. Learned counsel also argued that the Guardian Court was not competent to grant the reliefs as prayed in the application under sections 7 and 48 of Guardians and Wards Act as well as in the Guardianship Application No.146 of 1997 wherein a declaration was sought in respect of an order passed by the Hon'ble Supreme Court of Pakistan, as grant of such relief was 'beyond the jurisdiction of Guardian Court.-Referring to the application under section 13 of Guardians and Wards Act moved by respondent No.1 learned counsel submitted that such application was filed by the respondent No.1 without prejudice to his objections taken in this counter-affidavit with regard to the maintainability of the petition and the jurisdiction of the Guardian Court. Learned counsel lastly argued that as a result of such baseless allegations leveled by the petitioner against the respondent No.1 she has already succeeded to avoid the implementation of the agreement and. order dated 18-6-1.996, which is a consent arrangement, and thus the petitioner is guilty of repeated contempt's, disentitling her for any equitable relief. In support of his arguments, learned counsel placed reliance on the following cases: .

(1) 1998 MLD 1271, (2) 1996 CLC 1603, (3) AIR 1936 Lahore 1019, (4) AIR 1930 Lahore 250, (5) AIR 1954 SC 82 and (6) PLD .

1963 Dacca 816.

15. I have considered the arguments advanced before me by the learned, counsel and perused the case record so also the case-law referred by them. The parties have placed on record copies of several documents including one video cassette each by the petitioner and respondent No.1, with the object to rebut the allegations of the other side and to justify and substantiate their respective assertions. In the facts and circumstances of the present case. I will refrain from discussing and commenting upon the merits or otherwise of such' material placed on record for the reason that such an exercise will amount to investigation into the disputed questions of fact for. which*writ jurisdiction of this Court will not be a proper forum.

. 16. The moot point for consideration in the present petition is as to whether the two Courts below were justified in passing the impugned orders, thereby dismissing the Guardianship Application of the petitioner, without allowing her any. opportunity to prove the allegations contained in the Guardianship Application against respondent No.1:

11, In order to appreciate properly the case of the parties in this context/ it will be useful to reproduce here the contents of paragraphs 5 to 7 of G & W Case No. 146 of 1997 and also the observations of the Hon'ble.

Supreme Court of Pakistan contained in the order dated 5-6-1998. The same read as follows:

Paragraphs 5; 6 and 7 of G & W Case No. 146 of 1997:

5. That in terms of the aforesaid compromise (Annexure A) the respondent used to take the two. minors to his house every Week, but on their return, from the house of respondent since last about 6 to 8 weeks the applicant felt that both the , children appeared visibly frightened and confused. They often voiced immense hatred towards' their father, the respondent which was quite unusual. The daughter did not want to go for, the weekly, meeting and begged the applicant to send her to respondent as according to the minor daughter she did not want to see the 'insect' which reportedly was being shown to her by her father (respondent) after taking off his clothes.

6. Applicant was tremendously concerned and upset about the event of happening at the place of respondent, but the daughter was very hesitant in disclosing the details, however, after great persuasion and taking the minor into confidence she revealed that respondent Has' been causing her sexual harassment by various means inclusive of kissing very hard on her lips and rubbing himself against her body and private parts at night. She also complained that he puts his finger in her private part and as she tried to pull herself away from him she was locked in the bath room and lights are switched off.

7. That minor son Amin Saad complained of some medicine given to him by the father (respondent) as a punishment which made him very unhappy. It was revealed that the father had administered suppository to the little baby without any reason. Both the children after these startling revelations, were taken to the psychiatrist who opined that there seems to be much more than merely - forcible pushing of the suppository to the child."

Observations of the Hon'ble Supreme Court of Pakistan in its order dated 5-6-1998:

"It is unfortunate that such a serious allegation has been made. In our view, in these proceedings the same cannot be inquired into. It seems that an application under section 7 read with section 48 of the : Guardians and Wards Act bearing No. 146 of 1997 is pending in the Family Court at Karachi in which, the mother has prayed for the following relief:-

It is therefore prayed, that in the circumstances of the; case and in the light of the submissions made hereinabove, this Hon'ble Court may graciously be pleased to pass an order that the respondent has disintitiled himself from meeting minor children and as such has no right to take them to his house in terms of the compromise, Annexure "A" which he declared as null and void, inoperative and impracticable in the interest and welfare of the minors."

3. In our view, since the question as to whether the father has lost his right to the custody of the minors for the reasons inter alia mentioned in the aforesaid application filed before the Family Court is in issue before the Family Court, it will be appropriate for the mother to file the present application also before the Family Court if she is so advised. However, the Family Court will be free to pass such order, as it may deem appropriate after hearing both the parties and providing them reasonable opportunity, which may be warranted by law. With the above observation, this application is dismissed."

18. There is no cavil to this legal position that for deciding the question of custody of a minor and any other issue relating thereto welfare of the minor is the paramount consideration for the Guardian Court and, therefore, any issue in this regard is to be assessed, examined and measured by the Guardian Court on such yardstick and the Court had to record a definite finding on this point before passing any order in the matter. In the instant case, looking to the serious nature of allegations contained in the Guardianship Application, as reproduced above,- it was the duty of the Guardian Court to have allowed proper opportunity to the parties to lead their evidence and place on record other material to substantiate their respective case. From the nature of allegations it is evident that in case the petitioner had succeeded to prove the same, passing of an appropriate order setting aside/modifying/changing the arrangements made in the agreement dated 18-6-1996 was inevitable for the Guardian Court, and in case of her failure to prove such allegations she was bound to face its repercussions, but by not allowing such opportunity, and undertaking such exercise, the respondent No.3 remained oblivious of this situation, acted illegally and failed to exercise his jurisdiction in accordance with law. The observations of the Hon'b'le Supreme Court of Pakistan in its order dated 5-6-1998 were also quite pertinent on this issue, but the respondent No.3 did not care to abide by such observations which had virtually. given a guideline to the respondent No.3 in this regard.

19. The perusal of the impugned order dated 2-11 -1998 would show that on the relevant date the case was only fixed for hearing and disposal of miscellaneous application under sections 7 and 48 of the Guardians and Wards Act, 1890 dated 16-7-1998 and therefore respondent No.3 was is upposed to confine his order to that extent but respondent No.3, in a hasty manner took up the main Guardianship Application No. 146 of 1997 and dismissed the same Summarily.

20. From the facts and circumstances involved in the present petition, it is apparent that the petitioner had approached the Guardian Court-and for seeking modification/change in the agreement and the order dated 18-6-1997 by urging certain , facts and developments, which are subsequent to the passing of such order. It may be mentioned here in this regard that an order passed by the Guardian Court in respect of the custody of the minor (consent order or otherwise) may be an order in the best interest and welfare of the minor at that point of time but due to certain future eventuality and subsequent developments the same may not serve as such. It is for this reason that the Guardian Court has been empowered to modify, set aside or alter an earlier . order and pass an appropriate order at any subsequent stage to safeguard- the interest and welfare of the minor and that the order passed earlier in that context will not operate as a bar of jurisdiction for the Guardian Court for all future time to come. A consent order, a compromise or an agreement, between the parties will not absolve the Guardian Court from its basic responsibility to safeguard and protect the interest and welfare of the minor More so as in the litigation before a Guardian Court the two parties participating in such proceedings are not adversaries in the strict sense but they, plead their own view-point before the Court to enable the Guardian "Court to arrive at a just and proper conclusion on the question of welfare of the minor. For these reasons, am of the view that a Guardian Court, can reexamine such issue even if a compromise, agreement or consent order in that regard is already in the field..By expressing so I do not-mean to observe that such a compromise, agreement or consent order can be lightly upset/rejected by the Guardian Court while re-examining the question of the welfare of the minor in the given facts and circumstances of each case. In such a situation the Guardian Court VIII normally proceed with the presumption that the compromise, agreement or the consent order passed in the earlier guardianship proceedings was in the best interest and welfare of the minor : and, therefore, the Court will examine the subsequent developments and allegations made basis for seeking modification/change of such order in this background of he matter. This view of the matter is fortified from various decisions as referred by the learned counsel for petitioner.

21. Coming to the arguments, of Mr. Raja Qureshi, it may be observed , that none of the three orders passed by the Hon'ble Supreme Court , of Pakistan as referred by him had decided the merits of, the allegations made by the petitioner in her Guardianship Application No. 146/1997.

On the contrary; the; observations of the Hon'ble Supreme Court of Pakistan, contained in order dated 5-6-1998 had given a guideline to the Guardian Court for proceeding in the matter. The other contention with reference to the form of relief claimed in the Guardianship Application No.146/1997 has also no force as for-this purpose the whole contents of the Guardianship Application is to be looked into and the substance rather than its form is to be examined, even if the Court is found lacking authority to grant reliefs in the strict terms as prayed in the Guardianship Application, such other relief as deemed appropriate by the Court can be granted to the petitioner to ensure and safeguard the interest and welfare of the minor. If any case-law is needed to strengthen this view, reference may be made to the case of Samar Gul v. Central Government and others (PLD 1.986 SC 35). Relevant observations are as under:

"It is well-settled that a Court is empowered to grant such relief as the justice of the case may demand and for 'purposes; of determining the relief asked for, the whole of the plaint must be looked into, so that the substance rather than the form should be examined."

22. As regard the contentions of Mr. Raja Qureshi with reference to the questions of maintainability of the petition, suffice to observe that unless a proper and definite finding with regard to the truthfulness or otherwise of the allegations leveled by petitioner in her Guardianship Application is recorded by the Court, it cannot be held that the petitioner has not approached this Court with clean hands or that she is not entitled for any equitable relief in the matter. The case-law referred by the learned counsel for respondent No.1 is also of no. help to his case.

,23. The upshot of the above discussion is that this petition is allowed and the two orders dated 2-4-1999 and 2-11-1998 passed by the respondents Nos.2 and 3 are declared to be without lawful authority and of no legal effect. The respondent No.3 is directed to proceed with the Guardianship Application No. 146/1997 afresh and dispose of the same within three months of the receipt of this order. In the meantime, the Guardian Court/Family Court will also ensure disposal of application dated 16-7-1998 moved by the petitioner, in the light of observations contained in the order dated 5-6-1998, as reproduced above.

24. In case the other connected Guardianship Application No.486/1998 filed by respondent No. 1 is still pending for adjudication, the District Judge concerned will ensure that both these Guardianship Applications are proceeded together before the same Guardian/Family Court to avoid any conflict of view at the time of disposal of these two cases.

(1)(3)(4)(5) In view of the above order, these applications have become infructuous and are dismissed as such.

Petition allowed.

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